

Copyright & Licensing

What you need to know

The world of copyright and licensing can seem very daunting, particularly because there is an obligation on schools to comply with copyright law. We're here to help you through the process and to keep you legal. The guidelines below explain the most common copyright and licensing issues.

Summary: IMPORTANT - READ THIS NOW!

You are free to use the songbook, the audio CD and Words on ScreenTM CD ROM anywhere in school for teaching purposes.

If you make **copies** of any parts of the songbook for **classroom use** you must report your usage as required under the terms of your school's CLA and PMLL copying licence(s).

If you make **copies** of any parts of the songbook or **display** the lyrics for use in **school assembly** you must report your usage as required under the terms of your school's CWCL and CWMRL licence(s) issued by CCLI.

You are permitted to **install** the content of the Words on ScreenTM CD ROM on **one computer** under the terms of the **Digital Single-User Licence** that is supplied when you purchase your CD ROM (see below for full terms and conditions).

If you **install** the content of your Words on ScreenTM CD ROM on **multiple devices or on a network server** you will need to hold a valid **Digital Site Licence** which is available from Out of the Ark Ltd.

Public performance of any of the songs, ie to an audience other than pupils and staff, is permitted if you hold a valid PRS licence.

1. General Product Use

Singing Songs in the Classroom

You are free to use all of the material for teaching purposes within the classroom. If photocopying any part of the book for teaching purposes please report this usage, when requested, to CLA and PMLL (or similar copy licensing agencies in your territory) to ensure that you are legally protected.

Singing Songs in an Assembly or in Church

Songs may be sung in assembly without charge. However, the reproduction of the lyrics and/or musical scores for use in an assembly or a church requires a licence. The following licences from Christian Copyright Licensing Limited (www.ccli.com) permit the photocopying or reproduction of song lyrics or musical scores – for example to create song sheets or to display the lyrics or music using any electronic display medium:

For UK schools: A Collective Worship Copyright Licence (CWCL) and a Collective Worship Music Reproduction Licence (CWMRL)

For churches: A Church Copyright Licence (CCL) and a Music Reproduction Licence (MRL)

The following credit should be included with the lyrics: **'Reproduced by kind permission © Out of the Ark Ltd'**

Please ensure that you log the songs that are used on your CWCL and CWMRL copy report.

Your CWCL licence also grants you permission to display the song lyrics from our Words on ScreenTM CD ROMs using any electronic display medium including touchscreens and whiteboards. Simply log the song titles on your copy report.

Organisations that do not hold one of the above licences should contact Out of the Ark Limited directly for permission.

Singing Songs in a Concert

If you are performing any of our songs for the public on school premises (i.e. to anyone other than pupils or staff) then royalty payments become due. Contact Out of the Ark Music directly to obtain a licence. **Please note:** There is no need to obtain a licence from the publisher if your school has a **Performing Rights Society (PRS)** licence.

If you are performing songs at a public venue (other than on the school premises or in a church) then the performance should be logged on the venue's PRS report.

If photocopying or reproducing song lyrics or musical scores for use in concerts – for example to create song sheets, or to display the lyrics or music using any electronic display medium – **please report this usage**, when requested, to PMLL (or similar copy licensing agency in your territory) for school concerts or CCLI for church concerts to ensure that you are legally protected.

Making an Audio Recording or a Video of the Performance

If you wish to make an audio or video recording of your performance of any of our works and to produce copies please contact Out of the Ark Music's Customer Services team on 020 8481 7200 for further information on obtaining the relevant licence from MCPS. Alternatively you can contact MCPS directly and they will issue the relevant licence on our behalf: www.prsformusic.com

2. Use of Audio CDs and Digital Media (including Copying and File-sharing)

The content of Audio CDs and CD ROMs may be played directly from the disc anywhere on a school's premises.

Copying, installation and file sharing of any digital media from Out of the Ark Music are strictly forbidden without a licence from the publisher. This restriction includes all software regardless of whether it was supplied via audio CD, CD ROM, download, streaming or any other means.

Out of the Ark Music can provide schools with a **Digital Site Licence** which grants a number of file copying and file sharing rights enabling software to be used in multiple locations within the school.

Out of the Ark's **Words on Screen™** products are supplied with a **Digital Single-User Licence** which grants a number of rights to the purchaser as described below:

Digital Single-User Licence: Words on Screen™ & Singchronize® Player

Terms and Conditions

The use of this product is strictly regulated under the terms of the **Digital Single-User Licence** issued at the time of purchase.

The original licence document should be retained for inspection as this product may not be used without a valid licence.

*If you also hold a current Out of the Ark **Digital Site Licence** that covers this product then additional rights are granted for the period of the licence's validity – please refer to the terms and conditions of your licence.*

The terms and conditions of the **Digital Single-User Licence** are listed below.

Digital Single-User Licence: The Licence Holder's Rights – General Usage

In granting the following rights, no other rights are deemed to have been granted.

(A) For Establishments

Where the licence holder is an establishment (eg a school, a church or a nursery) the licence grants the holder the following rights.

Rights (1) – (5) below are ONLY applicable to usage on the premises of the purchasing establishment that holds the licence.

CD ROM (Where supplied)

- (1) To run the software contained on the CD ROM directly from the disc.
- (2) To install the software from the CD ROM on no more than one computer (NOT the network server*) belonging to the purchasing establishment that holds the licence.
- (3) To run the software contained on the CD ROM directly from the hard disk of the computer on which the software has been installed.

Downloading

- (4) To download the eSongbook and song files from Out of the Ark's website to one computer (NOT the network server*) belonging to the purchasing establishment that holds the licence.
- (5) To run the eSongbook and song files using a Singchronize® Player installed on the hard disk of the same computer on which the files have been downloaded.

Streaming

- (6) To stream the eSongbook and song files from Out of the Ark's website using a web browser on any device for a period of 12 months from the point of purchase.

(B) For Individuals

Where the licence holder is an individual teacher or an education advisor the licence grants the holder the following rights:

CD ROM (Where supplied)

- (1) To run the software contained on the CD ROM directly from the disc at any location where the individual is working.
- (2) To install the software from the CD ROM on no more than one computer (NOT the network server*) belonging to the licence holder, or on one computer at the normal workplace of the licence holder.
- (3) To run the software contained on the CD ROM directly from the hard disk of the computer on which the software has been installed.

Downloading

- (4) To download the eSongbook and song files from Out of the Ark's website to one computer (NOT the network server*) belonging to the licence holder, or on one computer at the normal workplace of the licence holder.
- (5) To run the eSongbook and song files using a Singchronize® Player installed on the hard disk of the same computer on which the files have been downloaded.

Streaming

- (6) To stream the eSongbook and song files from Out of the Ark's website using a web browser on any device for a period of 12 months from the point of purchase.

*** Permission to install or use this product on a network server can be obtained by purchasing an Out of the Ark Digital Site Licence that covers this product.**

Digital Single-User Licence: The Licence Holder's Rights – Extracting PDFs and MP3s

PDF document files (of the lyrics, music scores and teachers' notes) and MP3 files of each of the audio tracks for this songbook are supplied as part of the Words on Screen™ software.

Use of this software to extract and use PDF files and MP3 files is strictly regulated under the terms of the **Digital Single-User Licence**.

In granting the following rights, no other rights are deemed to have been granted in relation to the extraction and use of the PDFs and MP3s. The rights apply regardless of whether the original software was supplied as a CD ROM, as a download or as streamed content, and regardless of whether the files are extracted from installed versions of the software, or directly from the CD ROM, or from the streamed version of the eSongbook.

Whether the licence holder is an establishment (eg a school, a church or a nursery) or an individual the licence grants the holder the following rights.

- (1) To extract the PDF and MP3 files from the software using no more than one device belonging to the licence holder.
- (2) To open the PDF and MP3 files on no more than one device belonging to the licence holder.
- (3) To save the PDF and MP3 files on no more than one device (NOT a network server) belonging to the licence holder.
- (4) To play the MP3 files on the device on which the files have been opened and/or saved
- (5) To view the PDF files on the device on which the files have been opened and/or saved.
- (6) To print no more than one copy of each of the PDF files from the device on which the files have been opened or saved.

*If you also hold a current Out of the Ark **Digital Site Licence** that covers this product then additional file extraction and usage rights, including the saving of files to a network server, are granted for the period of the licence's validity – please refer to the terms and conditions of your licence.*

Digital Single-User Licence: The Licence Holder's Obligations

IMPORTANT

Digital Single-User Licence holders wishing to:

- install the software on more than one computer, or
- install the software on a network server, or
- extend their streaming rights beyond the initial free 12 month period
- extract the PDF files or MP3 files on more than one computer, or
- use the PDF files or MP3 files on more than one computer, or
- install the PDF files onto a school network or intranet
- install the MP3 files onto a school network or intranet

must have a valid **Digital Site Licence** from **Out of the Ark Music**.

The licence shall only remain in force subject to the following obligations being undertaken by the licence holder and/or the user of the software on behalf of the licence holder, and subject to no infringement or violation having been committed:

- (1) All organisations or individuals holding a CCLI Licence (Christian Copyright Licensing International) must log the use of all songs on the licence holder's CCLI report.
- (2) The copying of PDFs of scores or lyrics must be logged and reported as required by the Copyright Licensing Agency (CLA) and by Printed Music Licence Limited (PMLL) or by any other copy licence issuer in your territory.
- (3) Where the songs are performed in front of an audience other than staff and pupils a valid PRS licence or similar must be held*.

* Most UK schools hold a Performing Rights Society (PRS) Licence through a block licence agreement with the Department for Education. A PRS licence covers the performance of songs, but not the performance of musicals involving a script. Organisations wishing to perform the songs but which do not have a PRS licence or similar should purchase a **Digital Site Licence** from **Out of the Ark Music**.

Digital Single-User Licence: Restrictions

The following acts are strictly **forbidden** under the terms of the **Digital Single-User Licence**. It is the licence holder's responsibility to ensure that no restrictions are violated whether by its employees, its associates or by any other individuals.

- (1) Making any copy of the software, or any part thereof, to any medium whether for private use or public use - with the exception of the installation rights granted above or within the terms of a **Digital Site Licence**.
- (2) Broadcasting or distributing any of the software by any means – with the exception of the rights granted within the terms of a **Digital Site Licence**.
- (3) Forwarding any of the software by any means.
- (4) Lending any of the software to any other party than the staff members of the licence holder.
- (5) Selling or transferring any of the software to any other party.
- (6) Selling, transferring or disposing of any computer or storage device on which the software in part or in whole is installed or stored.
- (7) Modifying any of the software whether for individual use, public use, or financial gain.
- (8) Using any of the software to create new programs or applications.

For the avoidance of doubt these restrictions apply to any of the software including:

- software supplied by CD ROM, including installed versions thereof
- downloaded or streamed Singchronize® Player files and related content
- downloaded or streamed eSongbook and song files and related content

Digital Single-User Licence: Licence Issuer's Rights

Out of the Ark Music reserves the right to revoke the **Digital Single-User Licence** without recompense, without prior notice and at its own discretion if the licence holder is deemed to have failed to observe any of the obligations or restrictions listed above, or any other copyright restrictions.

Helpful information can be found on the following website:

A Guide to Licensing & Copyright in Schools: www.outoftheark.com/copyright-licences

And remember, we are always happy to help. For advice simply contact our customer services team:

Tel: **+44 (0)20 8481 7200** Email: copyright@outoftheark.com

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